

Defendant's Motion for Protective Order

Defendant John P. Taylor moves for a protective order, excusing him from responding to plaintiff's special interrogatories, set one, nos. 36-153, and request for production of documents, set one, nos. 13-64.

The court has reviewed the subject discovery, the declaration and amended declaration under Code of Civil Procedure section 2030.050, the meet and confer correspondence between counsel, and the arguments as set forth in the briefings. The court finds that in response to Taylor's objections under Code of Civil Procedure section 2030.040(b), plaintiff has met its burden of justifying the discovery requests.

Defendant's motion for a protective order is denied.

Plaintiff's request for sanctions is denied.

6. S-CV-0055032 Santos, Marcos v. Janiga, Matthew

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Defendants' Motion to Compel Responses to Interrogatories

Defendants' motion to compel responses to interrogatories is dropped from the calendar as no moving papers were filed with a noticed date of July 21, 2026. The court notes defendants' motion to compel further responses to special interrogatories, set one, and motion to compel further responses to request for production, set two, have been filed and are set to be heard on a later date.

Motion to Compel Inspection of Plaintiffs' Property

Defendants move to compel inspection of plaintiffs' property in its entirety, excluding the interior of any structures. Plaintiffs oppose the motion, excepting an inspection limited to the easement and gate areas in dispute.

On April 14, 2025, plaintiffs filed a complaint alleging: 1. physical invasion of privacy and intrusion on seclusion; 2. intrusion into private places or matter; 3. intentional infliction of emotional distress; 4. trespass; 5. private nuisance; 6. civil harassment; and 7. failure to maintain or repair easement. Plaintiffs allege, *inter alia*, defendants engaged in repeated drone flyovers which interfered with plaintiffs' use and enjoyment of their property and invaded their right to privacy. (Complaint, ¶¶ 9-12.) Plaintiffs further allege defendants physically trespassed on plaintiffs' property. (Id., ¶ 19; Laino Decl., Ex. B.) Plaintiffs allege defendants physically invaded .6 miles into the plaintiffs' property to observe plaintiffs' misuse of a creek. (Id., ¶ 21.) Plaintiffs allege defendants "fired guns near the border" of their property to "scare off [their] workers." (Id.) Plaintiffs bring tort claims for invasion of privacy, nuisance, civil harassment, trespass and intentional

infliction of emotional distress related to conduct on, or directly above, plaintiffs' property. (Id., ¶¶ 29–63.) Lastly, plaintiffs allege defendants failed to maintain their easement across the plaintiffs' property by allowing heavy trucks to damage the paved driveway. (Id., ¶¶ 24–28.)

On July 18, 2025, defendants filed a cross-complaint alleging nuisance and quiet title claims related to the driveway easement.

In opposition to the motion to compel, plaintiffs cite the California constitutional right to privacy. (Cal. Const., art. I, § 1.) A party asserting a privacy right under the California Constitution “must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 532 [citing *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35].) The requesting party “may raise in response whatever legitimate or important countervailing interests disclosure serves,” and the party seeking protection “may identify feasible alternatives.” (*Williams*, 3 Cal.5th at p. 532.) “A court must then balance these competing considerations.” (*Id.*) Even though plaintiffs contend that the inspection (without any entry into any structures on their property) is facially protected by the right to privacy, “[t]he right to privacy . . . is not absolute.” (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199 [citing *Hill*, 7 Cal.4th at 37].)

In this case, the court has balanced plaintiffs' reasonable expectation of privacy with defendants' interests in discovery that is relevant and probative to the parties' claims and defenses. The court concludes that defendants have failed to demonstrate good cause for an inspection of the property in its entirety and less intrusive means of obtaining relevant information exist. (Code Civ. Proc. § 2031.310.(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The court notes that although the declaration of Elisabeth Janiga speaks to alleged shooting range activity on plaintiffs' property, she appears to be referring to activity occurring within the last several months. There is no indication from the evidence submitted in connection with this motion that the alleged firearm activity on plaintiffs' property predates the trespass or invasion of privacy alleged in the complaint. Defendants do establish good cause to permit inspection of the easement located on Chapparal Lane, as well as the gate referred to in the parties' pleadings. (M. Janiga Decl., ¶¶ 2-6.)

Based on the foregoing, the motion is granted in part as to the driveway easement and the gate thereon. The motion is otherwise denied. The parties' requests for sanctions are denied.

7. S-CV-0055243 Gross, Rickey Glenn v. Gervin, Donald Joseph

The demurrer to complaint and motion to strike portions of the complaint are dropped as moot in light of the first amended complaint filed July 7, 2026.